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Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-8785

Comment on FR Doc # 2025-02305

Submitter Information

Name: Jarren Jennings

Address:

General Comment

I am an average US citizen. Every aspiration I have, and every industry I hope to join or enjoy the creations of, is threatened by this decision.

(Additional points and original formatting can be found in the attached document.)

The special carve outs in copyright law demanded by OpenAI (Microsoft) and Google for their AI Systems would do unprecedented damage to countless US industries. It would be an insult to the idea of a fair and competitive market.

If you ask nearly any person who has had their life's work taken for training data without permission, they are deeply opposed to it. Does their voice not matter?

AI systems can only be produced by first training on work made by people. Without their work, AI systems would not function. Just that alone proves that the work is incredibly valuable, yet these companies demand to steal it freely. This is not "fair use", it would be no different than allowing a car company to steal proprietary parts from a competitor. It would not be fair for the competitor, it is not fair to the producers of this work.

People have spent their life studying and honing their knowledge, skills, and craft. These companies wish to leech off that hard work, then force these people to compete against their own efforts. They are biting the hand that unwillingly feeds them. And they don't even offer credit, let alone compensation. They believe that anything and everything on the internet – regardless of who owns it – should be theirs for the taking.

These companies are asking this administration to create exceptions and loopholes to make this practice of stealing American creators' copyrighted work legal precedent. They are suggesting that if a machine ingests and reproduces copyrighted work, it is somehow suddenly "fair use". They claim that if this administration does not allow them to rewrite the law in this way, it will stifle American innovation, but this is a lie.

Instead, it will have the opposite effect. The purpose of American copyright law is to protect the incentive to create and innovate. Allowing this will directly undercut countless industries' ability to innovate.

These companies not only want complete market control, they want the government to bail them out from the poor business decision of building their machines on parts they don't own. If anyone else suggested this they would be laughed out of the room.

If we the American people do not own our creations, and everything we put online can be freely stolen and reproduced by AI Companies, what will be the incentive to create? If everyday Americans create a new innovative piece of computer code, a new visual design, or a new piece of music, only to have it immediately stolen by Google and Microsoft, why bother creating it in the first place? How will we possibly make a living doing these things?

If we wish to protect American innovation, we need to protect American creators and innovators. Do not create new copyright exemptions that allow these companies to exploit and steal from creators, innovators, and everyday Americans without permission,

compensation, or transparency.

Thank you for the opportunity to comment on these important issues. I pray that the right decision is made and the honest work of the American people is protected.

Attachments

Jarren Jennings' Comment

March 15, 2025

Jarren Longstreet Jennings
Artist and Independent Game Developer

Re: National Science Foundation's Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

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Instead, **it will have the opposite effect.** The purpose of American copyright law is to protect the incentive to create and innovate. **Allowing this will directly undercut countless industries' ability to innovate.**

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This administration's AI Action Plan should focus not on giving away American's work to tech companies, but rather on ensuring a fair marketplace with competition:

- First, the government should ensure that creators and everyday Americans have effective and protected **consent**, so that we can decide when and where our work is used by AI systems.
- Second, the AI Action Plan should encourage a robust **licensing** marketplace, so that the incentive to create for small businesses is preserved. Our work has immense economic value, so the value generated by that work should accrue to the original creators, not just greedy AI Companies.
- Finally, the AI Action Plan should require **transparency** from AI companies, requiring them to disclose what material is in their training datasets, and label what content is AI generated.

I am not anti-technology or anti-AI. I am consistently impressed by the capabilities of these AI systems, and find them incredibly useful for many things. But we should not sacrifice the hard work of countless Americans and give it away to these companies by fundamentally rewriting copyright law just for them.

Thank you for the opportunity to comment on these important issues. I pray that the right decision is made and the honest work of the American people is protected.